

an estate to his *sister* and her heirs for ever, upon trust to settle it on such of the descendants of the testator's mother as his *sister* should think fit, and the devisee having married, the question was raised whether the execution of the power by her, as she was under coverture at the time, was to be considered as valid, Lord Hardwicke held that this was a power *without an interest*, i.e., without any beneficial interest and could therefore be executed by the *feme covert* (a). On the other hand where the legal estate was devised to *trustees* in fee upon trust for an infant *feme covert* for her sole and separate use during her life, and upon trust to permit her by deed or writing executed in the presence of three or more witnesses, notwithstanding her coverture, to dispose of the estate as she should think fit, and the testator died leaving the *feme covert* his heir-at-law, and she, during the continuance of the coverture and infancy, exercised the power by will, Lord Hardwicke, upon the question whether the power had been duly executed, observed, that this was a power *coupled with an interest*, which was always considered different from naked powers: it was admitted that if this execution was to operate on the estate of the infant it might not be good: now this was clearly so, for she had the trust in equity for life, with the trust of the inheritance in her in the meantime, so that this was directly a power over *her own inheritance*, which could not be executed by an infant (b).

[3. **Exercise of powers by infant.** — In the case of personal estate, however, an infant may exercise a power in gross. Thus, where under a marriage settlement an infant *feme covert*, to whom the income of the settled property was given for her life for her separate use, had, in the events which happened, a general power limited to her of appointing the trust funds, after her death and subject to the interest of her husband, by deed or will, and she exercised the power by deed, and died an infant, it was held by the late M. R. and affirmed by the Court of Appeal, *dissentiente*

(a) *Godolphin v. Godolphin*, 1 Ves. 298; see 306; and see *Blithe's case*, Freem. 91; *Penne v. Peacock*, For.

(b) *Hearle v. Greenbank*, 1 Ves. 43.